



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd, Planner
Subject: UDC-21-00095 / Meadowlark Estates, 2nd Filing – Preliminary Plat
Date: June 14, 2021

Background:

The item for consideration is a *Preliminary Plat*. This is approved by Acknowledgement.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 6/14/2021
- Public Services Committee 6/22/2021
- Final consideration 6/28/2021

Related Items:

- Meadowlark Estates, 2nd Filing Annexation (UDC-21-00197)
- Meadowlark Estates, 2nd Filing Zone Change (UDC-21-00198)

Planning Commission Recommendation:

The Planning Commission heard this item at their June 7, 2021 meeting and recommended the Governing Body approve this application subject to Staff's recommended conditions, with the exception of condition 2a, by a vote of 3-1.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Planning Commission Staff Report



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CITY OF CHEYENNE PLANNING COMMISSION

JUNE 7, 2021

STAFF REPORT

FILE: UDC-21-00095: Meadowlark Estates, 2nd Filing Preliminary Plat

REQUEST: A Preliminary Plat of 17.75 acres proposing creating 60 lots

LOCATION: Northeast corner of Dell Range Boulevard and Whitney Road.

APPLICANT: PKT Development – Butch Tilton

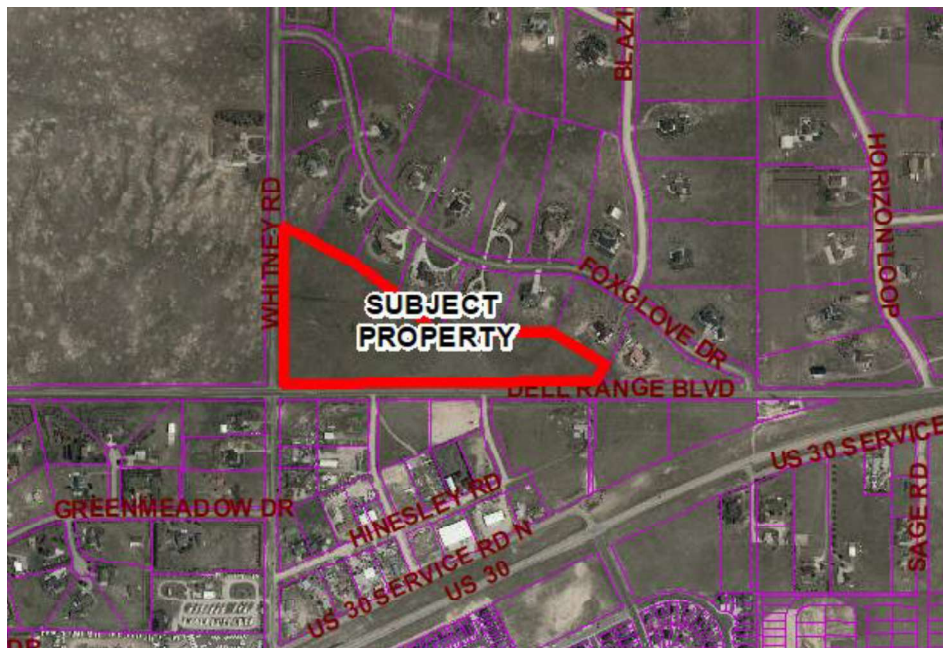
AGENT: AVI, PC – Bruce Perryman

OWNER: Meadowlark Estates, LLC

ZONING: County MU Mixed-Use, County LR Low-density Residential

PURPOSE: A preliminary plat proposing 60 lots on a 17.75 acre tract of land for future residential and commercial development

PREPARED BY: Seth Lloyd, Planner



RECOMMENDED MOTION:

Move to recommend exceptions for block sizes, allowance of single-tier lots, and **approve** the Meadowlark Estates, 2nd Filing Preliminary Plat subject to staff's recommended conditions, noting that as conditioned, the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.1.2 Preliminary Plat Approval
- UDC Article 3 Impact Studies
- UDC Article 4 Subdivisions
- UDC Article 5 Zoning Regulations
- PlanCheyenne
- East Dell Range Boulevard / US 30 Corridor Study
- Whitney Road Corridor Plan

BACKGROUND:

The applicant is requesting approval of a preliminary plat for a 17.75-acre tract of land to create 60 lots for future residential and commercial development. The County Assessor presently shows the tract of land as one ownership parcel. The land is undeveloped.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Urban Transition Residential, Mixed-use Commercial	County LR, County MU	Undeveloped
North	Urban Transition Residential	County LR, County AR	Rural residential
South	Mixed-use Commercial	County MU, County NB	Rural residential, Service, Commercial
East	Urban Transition Residential	County LR, County AR	Rural residential
West	Urban Residential, Mixed-use Commercial	County A-2	Undeveloped

The property is currently zoned County LR Low-density residential and County MU Mixed Use. The proposed zoning is City LR Low-density Residential, City MR Medium-density Residential and City CB Community Business for the commercial parcel.

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the preliminary plat, the Commission must make the following findings required in UDC 2.1.2.d a detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.1.2.d.1)

On the future land use map found in PlanCheyenne, the subject land has been designated as Urban Transition Residential and Mixed-use Commercial. The Mixed-use Commercial portion is at the intersection of Dell Range and Whitney Road.

Surrounding areas to the north and east are also designated Urban Transition Residential. To the south, the future land use designation around the intersection of Whitney Road and Dell Range Boulevard is designated Mixed-use Commercial, and to the west, the future land use designations include Mixed-use Commercial and Urban Residential (recently updated through the Connect 2045 update).

The Urban Transition Residential designation encourages a range of lower-intensity residential uses. The optimal City zoning is LR or RR for this designation, and most of the area of this plat in the Urban Transition Residential designation is proposed to be zoned LR. A portion is proposed to be zoned MR. The MR zoning provides a transition from the higher-intensity commercial designation to the lower-intensity Urban Transition Designation. The plat proposes meeting the LR and MR zoning standards, which would be in conformance with the future land use map.

The future land use map includes a mixed-use designation at the intersection of Whitney and Dell Range, indicating that a commercially-zoned property at this location is acceptable.

Foundation 1 of PlanCheyenne encourages community growth. This development is in response to market demands and is within the Urban Service Boundary. The development patterns proposed by this plat are compatible with the designations found on the future land use map.

Foundation 7 of PlanCheyenne support the use of existing infrastructure and timely provision of services (including emergency and education services). Large developments on the edge of the community can create issues with providing services in an effective and timely fashion. Development of this area of the community creates the need to improve street and emergency service infrastructure. Staff recommends that preliminary plats expanding the response area include conditions for agreements with the City regarding impacts to Cheyenne Fire Rescue and the design and construction of roadway improvements.

Other principles of PlanCheyenne encourage tying neighborhoods together and a compatible development pattern between neighborhoods. Due to topographic constraints and previous development, the ability for the proposed subdivision to tie into the land to the north and east is limited. While the subdivision to the northeast is a largely rural subdivision, the LR zoning of the properties immediately adjacent to this plat and the proposed LR zoning of the plat provide a transition from rural residential to a more urban development pattern.

The application **complies** with this review criterion, with conditions.

2) The application reflects sound planning and urban design principles with respect to existing and potential future development in the vicinity, including consideration of current and future streets, open spaces, blocks and lots, and public utilities or facilities. (UDC 2.1.2.d.2)

The proposed plat is adjacent to existing developments to the north and east, and adjacent to major transportation corridors to the south and west. The plat proposes tying into an existing intersection to the south, and into a proposed intersection to the west. Due to topography and previous development patterns, there is no real opportunity to tie into the neighborhood to the northeast. The preliminary plat shows the applicant's intent to tie into and extend utilities.

Whitney and Dell Range is a major intersection, and this development's tie into Dell Range should be located across from Haunted instead of Woodhouse. Placing the intersection to align with Woodhouse may limit the turning movements at that intersection.

The narrative submitted with the plat proposes a trail along Dell Range and Whitney, which would help meet open space requirements and connect neighborhoods. The plat may have the opportunity to preserve some open space in topographically challenging areas, but none is proposed with this platting action. The applicant has indicated that the nearby Whitney Ranch 4th Filing may provide enough open space for both projects; this may be possible, however, the applicants would need to demonstrate that the open space provided satisfies the requirement for both projects and an agreement should be in place demonstrating that Whitney Ranch, 4th Filing project's representatives accept and agree to this project's use of their open space.

The application **complies** with this review criterion, with conditions.

3) The division of land meets the purposes, intent, and all applicable standards in Article 4. (UDC 2.1.2.d.3)

Transportation Network:

This plat proposes connecting into Whitney and Dell Range at three points. Due to topographic constraints and previous development, connections to the north and east are not proposed.

Maximum and minimum block dimensions are established by the Unified Development Code. Blocks within this proposed subdivision do not meet the block standards put forth in the code; however, these blocks appear to qualify for exceptions due to the constraints in place. Due to the significant topographic change, Staff recommends that Block 3 qualifies for the Natural Features exception.

Single tier blocks are generally prohibited, but may be allowed with specific City Council approval. Single tier blocks contain lots known as 'double frontage lots' or 'through lots' and are lots with frontages on two parallel streets – one street in the front and one in the rear of the lot. Lots of this nature can create issues with access, addressing, setbacks, and maintenance. In this plat, there are lots along both Dell Range and Whitney which fit this description. The applicant has proposed that a Greenway be located along Dell Range. A Greenway is generally maintained by the City, so this may mitigate some of the potential maintenance issues. To mitigate some of the other issues presented by single-tier blocks, the applicant should provide a note to the plat prohibiting lots from being accessed off of Dell Range and Whitney. The City Council may also "require additional design elements either in the right-of-way or easements to mitigate the adverse impacts of double frontage lots and blocks" (UDC 4.3.3.b.2). Staff recommends that a

common fencing plan be provided with final plat submittal. While Block 4 has double-fronted lots, due to the constraints, such lots may be appropriate.

The UDC recommends that similar lots face each other across the public streetscape. For the most part, this plat fulfills this objective. A couple of residential lots east of Woodhouse would face the commercial parcel. Lots along Porter east of Woodhouse have MR-zoned duplex lots facing LR-zoned single-family lots across the public street. In the latter case, however, the development pattern is still single-unit residential development on individually owned parcels.

The Porter Drive right-of-way proposed with this plat is at the minimum street section allowed by the UDC, however, the Engineering Department has determined that a wider right-of-way is needed to effectively develop the street within this portion of the community – a 60' wide right-of-way is requested. Finch Drive is proposed at 30' wide which does not meet standard street sections. Street right-of-way widths and street sections are established to allow for proper traffic flow, pedestrian connections, and on-street parking. Substandard widths may not be able to provide sufficient room for street improvements.

Community Facility Fees:

For fees based on acreage, the area of the plat is pro-rated to the nearest tenth of an acre. The required fees for the 14.6 acres of non-exempt land in this plat are as follows:

Land Acquisition Fee	\$5,110 (\$350 per acre)
Infrastructure Fee	\$5,110 (\$350 per acre)
Total Land Acquisition & Infrastructure Fees	\$10,220.00

Per UDC Section 4.2.5, Table 4-2, the Land Acquisition & Infrastructure fee are payable at the time of the signing of the final plat.

Residential Enhancement Fee	\$400 per dwelling unit
Commercial Enhancement Fee	\$1,100 per acre

Per UDC Section 4.2.5, Table 4-2, Enhancement Fees are payable at the issuance of a building permit for each structure.

Open Space:

Open space is required to be provided with this subdivision. For low-density residential development, open space is required at 750 square feet per dwelling unit or 8% of the gross plat area (whichever is less).

Commercial and mixed-use open space is required based on the size of the building. Because building footprints and total number of multifamily units are not determined until site plans are submitted, multifamily, mixed-use, and commercial development are generally expected to provide open space at time of site plan. Approximately 3.6 acres of the plat area is proposed as multifamily, mixed-use, or commercial development.

This plat proposes 59 single-unit parcels with a gross acreage of roughly 14 acres (excepting the multifamily, mixed-use, and commercial lot acreage). The required open space is about 1.1 acres. The applicant's narrative proposes providing a 10' wide trail corridor along Whitney and Dell Range. Extra land dedicated to right-of-way for the purposes of a trail corridor is one way to meet the open space requirement, but the proposed plat is deficient in meeting the open space requirement. The applicant's narrative also proposes utilizing the open space of the nearby Whitney Ranch, 4th Filing plat – this open space is yet to be dedicated or developed, but if taken on the whole, the open space provided with Whitney Ranch, 4th Filing and this plat may be able

to meet the collective open space required. A demonstration of how both plats combined meet the combined requirement, and an agreement between the different property representatives would be necessary to fulfill the open space requirement.

Pursuant to UCD 4.4.2.b.4, the discretion of the City the applicant may make a contribution to the City in lieu of park land donation. Staff recommends that with final plat submittal the applicant provide acceptable documentation indicating the value of lands that would have been dedicated. Staff believes that an in-lieu contribution to the open space development is acceptable for this development.

A natural area, park, or other dedication may also be a possibility to provide the required open space.

Required Improvements:

This proposed subdivision includes a layout to provide required utilities to the properties within this development; however, additional easements may be required.

New traffic control improvements may be necessary as this area of the community develops, and this portion of the overall development in the area should contribute to such improvements.

The application **complies** with this review criterion, with conditions.

- 4) Any phasing proposed in the application is clearly indicated and demonstrates a logical and well planned development pattern. This may include consideration of amenities and public facilities of the subdivision within each phase compared to the anticipated timing or the likelihood of future phases being constructed as planned. (UDC 2.1.2.d.4)**

There is no phasing proposed regarding the subdivision of the subject property.

The application **complies** with this review criterion.

- 5) The impacts identified in specific studies or technical reports that were prepared or requested to be prepared in association with the application, and whether the findings and recommendations of these reports, or any modifications or conditions on approval of the application, can mitigate these impacts. (UDC 2.1.2.d.5)**

The applicant submitted a drainage worksheet and a Traffic Impact Study. No other studies were provided with the Preliminary Plat application.

Drainage:

The review of the drainage worksheet submitted with the preliminary plat identified that a drainage study is required for this project. No drainage study has been submitted.

Traffic:

After review, the traffic analysis submitted with this application was deemed deficient by the City Engineer's office. Multiple corrections or adjustments were requested. An updated traffic impact study has not been submitted.

The application **complies** with this review criterion, with conditions.

- 6) Lots proposed for development shall be buildable lots according to the existing or proposed zoning district standards, result in design and development patterns that meet the Intent and Applicability statements of the existing or proposed zoning district, and not aggravate nonconforming setbacks or currently adopted building and fire code access and separation requirements. (UDC 2.1.2.d.6)**

The lots on this plat meet required lot standards in the proposed zone districts; however, type of development may be limited based on the layout shown.

The following lots are short in area or frontage for the required minimums for detached (single-family) development in the LR zone: Lots 3, 4, 8, 15, and 28. Unless adjusted, these lots may be restricted to duplex development.

Lot 3 is the only lot short in area, and is less than 500sqft short – the adjacent Lot 4 is more than 1,600sqft over the minimum and a minor adjustment may be able to make both lots over the standard.

The UDC allows lot frontage to be calculated at the front setback line instead of the front lot line (for cul-de-sacs or similar curved rights-of-way). With this allowance, Lots 3, 4, 8, and 28 may meet frontage minimums; and, with a minor adjustment, Lot 15 (which is only 1' short) may also meet minimums for detached (single-family) development.

Lots 3 and Lots 7-24 on Block 3 are short of the minimum area requirements for detached (single-family) development in the MR zone, but meet the standards for duplexes.

The LR zone is intended to develop with a mix of lower-density, suburban residential development. The MR zone is intended to develop with a mix of residential dwelling types and densities. The CB zone is intended for Retail, Employment, Service and Civic uses that may serve a number of residential neighborhoods. The general development patterns proposed meet the intent and applicability of their respective zone districts.

The application **complies** with this review criterion.

- 7) All parcels not proposed as buildable lots and which are not dedicated to and accepted by the City shall have a clearly defined entity responsible for ongoing maintenance. (UDC 2.1.2.d.7)**

All proposed lots are proposed to be buildable.

The application **complies** with this review criterion.

- 8) The application will not create any undue influence on existing or potential development for adjacent property considering the existing zoning and Comprehensive Plan policies for that property. (UDC 2.1.2.d.8)**

Surrounding properties to the north and east are largely already developed with rural residential uses in the County. Property to the south is largely developed with a mix of residential, commercial, and light-industrial style uses. The property to the west is undeveloped, but has had an approved preliminary plat with a mix of commercial and residential uses. Directly adjacent to the proposed development to the south and west are major roadways.

The plat does not propose any connections to the north or east, but a significant topographic change and previous development limits the ability to make any effective connections.

Lots proposed by this plat are smaller in size when compared to existing development patterns; but most of the surrounding development is outside of City limits and the future land uses of this area anticipate future urban-style development. Due to the intersection of major roadways, and nearby development to the south, the placement of commercial lots is appropriate.

The Comprehensive Plan designates most of the area inside and around the plat boundary as Mixed-use Commercial and Urban Transition Residential. The development pattern proposed by this plat is appropriate for this mix of designations.

The application **complies** with this review criterion.

9) The application is not harmful to the public health, safety, and welfare. (UDC 2.1.2.d.9)

The parent lots within the original plat for Meadowlark Estates do not meet present septic system size requirements but were approved in conformance with the standards at the time of separation. Staff believes that with this development being connected to City water and sewer, the application is not harmful to the public health, safety, and welfare.

Access location and spacing is a public safety concern which is why the standards of Article 4 exist. The plat proposes potentially unsafe intersections and accesses onto Dell Range. For safety reasons, the proposed access points may result in limited turning movements.

The application **complies** with this review criterion.

10) Remainder lot(s) shall be clearly identified on the preliminary plat and shall not be developed or proposed for development for purposes. Remainder lot(s) shall be noted and described on all plats either graphically or by legal description. (UDC 2.1.2.d.10)

Remainder lots are not proposed with this Preliminary Plat.

The application **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne
- East Dell Range Boulevard / US 30 Corridor Study
- Whitney Road Corridor Plan

Conformance with PlanCheyenne is covered by review criterion 1.

Both the East Dell Range Boulevard / US 30 Corridor Study and the Whitney Road Corridor Plan recommend the expansion of Dell Range. The preferred option for the improvement of the Dell Range and Whitney intersection is a roundabout; however, a traffic signal-controlled intersection was also put forward as an option. The proposed plat anticipates a traffic signal; however, either option needs to dedicate appropriate space for improvements at the intersection. These plans also anticipate the development of this area with urban-style uses.

STAFF REVIEW:

The applicant responded to initial Staff comments and have submitted revisions and clarifications. Comments and concerns that have been addressed between staff report publications have been removed from this report. Through the review process of the revised submittal , comments were received regarding the following issues:

1. Lack of a Drainage Study
2. Traffic Study deficiencies
3. Dedicating a triangle of right-of-way at the Dell Range and Whitney Road intersection (to allow for intersection improvements)
4. Concern about the Woodhouse Dr intersection's proximity to the Dell Range / Whitney Road intersection and potential movement restrictions
5. Sidewalks along Whitney Road
6. Porter right-of-way width
7. Lack of required Open Space
8. Block sizes and double-fronted lots
9. Finch Drive width
10. Effect of nearby septic systems
11. Lack of utility easements

At the time of staff report publication, these items were still of concern and staff has recommended conditions to address these concerns at final platting.

CONCLUSION:

This application meets review criteria 4, 6, 7, 8, 9, and 10 with the revisions submitted. Conditioning the Preliminary Plat may allow the plat to meet review criteria 1, 2, 3, and 5.

ALTERNATIVES:

1. Recommend approval of the preliminary plat as submitted by the applicant.
2. Recommend approval of the preliminary plat subject to staff's recommended conditions (**Staff Recommendation**).
3. Recommend denial of the preliminary plat based on findings of denial. The Planning Commission must conclude that the plat does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the preliminary plat until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

The Planning Commission may modify staff's recommended conditions, delete conditions, add conditions, or decide contrary to staff's recommendation. In the event conditions are modified, the conditions shall relate to applicable review criteria. In the event that the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval with the following conditions:

1. Concurrent with submittal of the final plat, the applicant shall:
 - a. Provide a drainage study
 - b. Provide an updated traffic study
 - c. Revise the plat as follows:
 - i. Make Porter Dr. 60' wide right-of-way.
 - ii. Provide a street section for Finch Dr. satisfactory for Engineering,
 - iii. Provide necessary utility easements.
 - iv. Make revisions (as necessary) to accommodate drainage and open space
2. Prior to approval of the final plat the applicant shall:
 - a. Enter into a development agreement for public safety fees. Public safety fees shall be based on a January 2021 fee of \$756 per unit and shall be adjusted for inflation utilizing the construction cost index for twenty (20) cities, as issued by the current Engineering News Record to the date of final plat filing, and this condition shall be subject to modification by the Governing Body at the time of their consideration.
 - b. Obtain a Subdivision Standard Waiver for alternative street design for construction of Finch Drive (or widen to a standard street right-of-way width).
 - c. Obtain a Subdivision Standard Waiver for relief from the sidewalk construction requirements on the east side of Whitney Road north of proposed Porter Drive.
 - d. Enter into a development agreement regarding improvements to Dell Range Boulevard and Whitney Road for the developer's proportionate share of required improvements.
 - e. Provide required open space through either
 - i. dedication on this plat; OR
 - ii. documented agreement(s) with the neighboring Whitney Ranch, 4th Filing plat
 - iii. acceptable cash-in lieu pursuant to UDC 4.2.2.b.4.
3. In the event the applicant desires to provide cash in lieu instead of dedicated open space, the applicant shall provide acceptable documentation indicating the value of land(s) that would have been dedicated.

ATTACHMENTS:

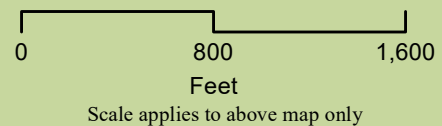
1. Aerial, Zoning, and Future Land Use Map
2. Submitted Master Application Form
3. Applicant-submitted plat

Meadowlark Estates, 2nd Filing Preliminary Plat

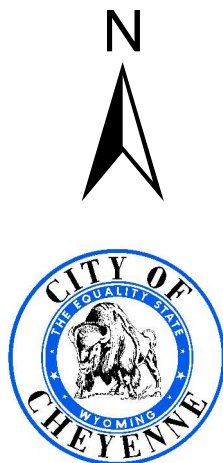
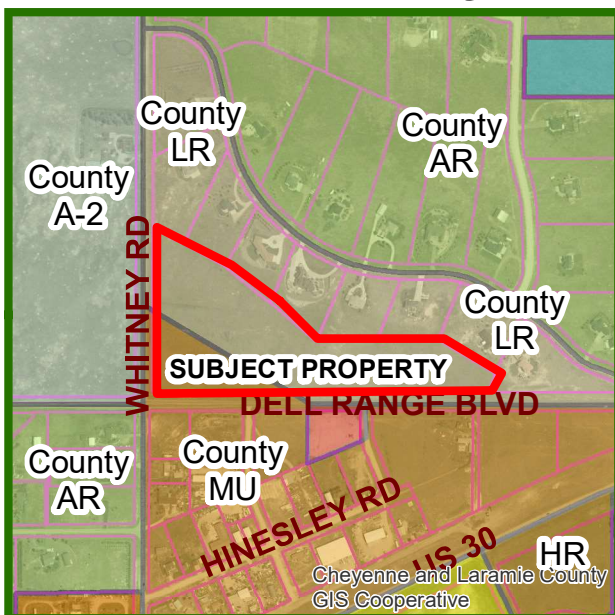


Application Number
Preliminary Plat
UDC-21-00095

Applicant: AVI, PC
Bruce Perryman
Owner: PKT Development, LLC

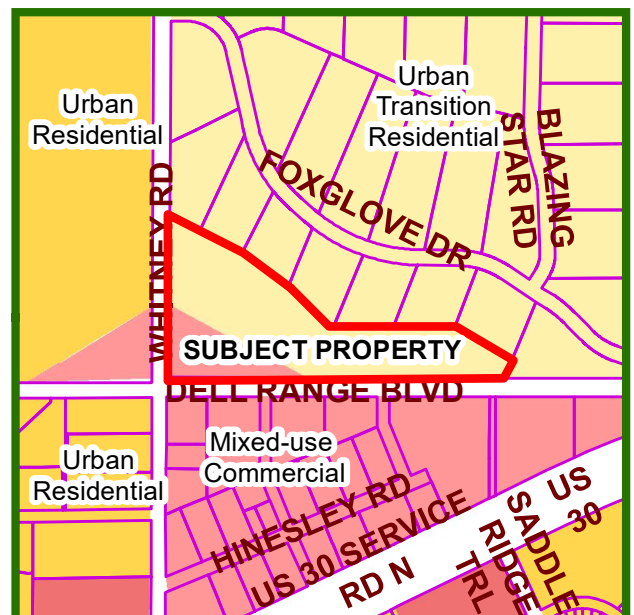


Current Zoning



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Plat - Preliminary

Submission date: **17 March 2021, 5:42PM**

Receipt number: **3**

Related form version: **11**

General Information

Applicant Name: **PKT Development**

Applicant Address: **9440 Kentucky St.**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82009**

Applicant Phone: **307-630-7643**

Applicant Email: **butch.tilton@yahoo.com**

Representative Name: **AVlpc**

Representative Address: **1103 Old Town Lane, Suite 101**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **307-637-6017**

Representative Email: **perryman@avipc.com**

Owner Name: **Butch (Ken) Tilton**

Owner Address: **9440 Kentucky St.**

Owner City: **Cheyenne**

Owner State:	WY
Owner Zip Code:	82009
Owner Phone:	307-630-7643
Owner Email:	butch.tilton@yahoo.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	Authorization.pdf
Project Location (Street Address or General Location):	Foxglove Dr., Cheyenne, WY
Assessor's Parcel ID number(s)	
Total Project Area	13.65 Acres
Existing Zoning	LR - Low-density Residential MUR - Mixed-use Residential Emphasis

Application-Specific Information

Written Statement	The developer is looking to annex the property to provide housing and commercial lots.
Current Subdivision	Meadowlark Estates
Lots affected by this proposal	Tract 1 and a portion of Tracts 2-9 Meadowlark Estates
A pre-application meeting is not required, but recommended. Please indicate the date the pre-application meeting was held.	01/27/2021
Upload any pre-application meeting notes or summaries relevant to this proposal.	WhitneyDellRange_notes210127.pdf
Are any easements proposed to be added, modified, or removed?	No
If easements are proposed to be added, modified, or removed. Attach Franchise Utility approval letters from all affected utilities. Failure to provide this information could result in delay of application review.	

Open Space Approach

The 10' right of way space along the east side of Whitney Rd and the North side of Dell Range will be dedicated to a walking path.

Drainage Worksheet / Study

[Drainage Worksheet.pdf](#)

Transportation Worksheet / Study

[Transportation Study.pdf](#)

Transportation Network Plan

[4469_PRELIM PLAT.pdf](#)

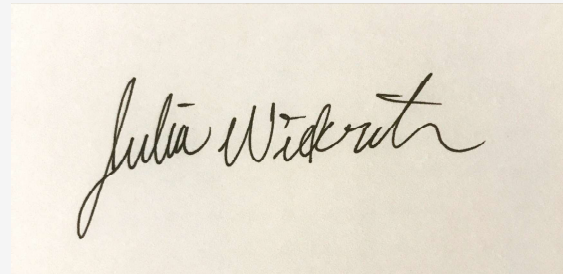
Preliminary Plat Drawing

[4469_PRELIM PLAT.pdf](#)

Signature / Certification

Applicant Signature

Name of signatory: Julia Wickerath

A photograph of a handwritten signature in black ink on a light-colored, slightly textured paper. The signature is written in a cursive style and reads "Julia Wickerath".

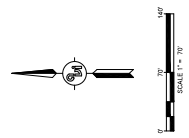
[Uploaded signature image: signature.jpg](#)

Please enter an email address for an email receipt.

jwickerath@avipc.com

MEADOWLARK ESTATES 2ND FILING
A REPLAT OF TRACT 1 AND A PORTION OF TRACTS 2-9 OF MEADOWLARK
ESTATES AND BEING SITUATED IN A PORTION OF THE SW¹/₄ OF SECTION
24, T. 14N., R. 66W., 6TH P.M., LARAMIE COUNTY, WYOMING
PREPARED MAY 2021

DRAWING NO. 1 OF 1



WATER AND SEWER UTILITY EASEMENT THEREIN AFTER REFERRED TO AS THE "BOPU UTILITY EASEMENT." AS SHOWN AND DESCRIBED HEREON, IS GRANTED TO THE BOARD OF PUBLIC UTILITIES OF THE CITY OF CHENAYE FORD, NO OTHER UTILITIES MAY INSTALL FACILITIES OR EQUIPMENT WITHIN THE BOPU UTILITY EASEMENT. AS LONG AS ANY OTHER UTILITY DOES NOT INTERFERE WITH THE BOPU UTILITY EASEMENT, THE BOPU UTILITY EASEMENT SHALL REMAIN IN FULL FORCE AND EFFECT. THE CROSSING OF THE BOPU UTILITY EASEMENT SHALL BE AT LEAST TWO FEET WIDE, AND A MINIMUM OF FOUR INCHES OF VERTICAL CLEARANCE SHALL BE PROVIDED BETWEEN THE BOPU FACILITIES AND THE CROSSING FACILITIES, UNLESS OTHERWISE APPROVED BY THE BOPU, AND A COPY OF ANY UTILITY EASEMENT AUTHORIZING THE CROSSING OF THE BOPU UTILITY EASEMENT IS PROMPTED TO THE BOPU PRIOR TO ANY CONSTRUCTION WITHIN THE BOPU UTILITY EASEMENT.

NOTES:

